



Criminal Evidence Act 1979

1979 CHAPTER 16

An Act to amend paragraph (f)(iii) of the proviso to section 1 of the Criminal Evidence Act 1898 and corresponding enactments extending to Scotland and Northern Ireland. [22nd March 1979]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In paragraph (f)(iii) of the proviso to each of the following enactments, that is to say, section 1 of the Criminal Evidence Act 1898, sections 141 and 346 of the Criminal Procedure (Scotland) Act 1975 and section 1 of the Criminal Evidence Act (Northern Ireland) 1923 (under which an accused person who has given evidence against another person charged with the same offence may be cross-examined about his previous convictions and his bad character), for the words “with the same offence” there shall be substituted the words “in the same proceedings”.

Amendment of section 1 of Criminal Evidence Act 1898, etc., and transitional provision.

(2) Notwithstanding subsection (1) above, a person charged with any offence who, before the coming into force of this Act, has given evidence against any other person charged in the same proceedings shall not by reason of that fact be asked or required to answer any question which he could not have been asked and required to answer but for that subsection.

2.—(1) This Act may be cited as the Criminal Evidence Act 1979.

Short title and commencement.

(2) This Act shall come into force at the end of the period of one month beginning with the date on which it is passed.